The Witness Remains - A Record Requiring a Response to Rachel and the oversight and structures of police law-enforcement at NDIS who used to support and protect her corruption

Documentary testimony, alleged disability-support and safeguarding failures, and a request for independent examination and practical action

Dr Richard William McLean — known publicly as Barran Dodger
For the attention of Able Point, the NDIS Quality and Safeguards Commission, and relevant public authorities, advocates and legal representatives

Introduction to the reader and recipient

FORMAL STATEMENT AND REQUEST FOR ACCOUNTABILITY

Apply protective duties equally: examine the conduct reported concerning Rachel, Able Point, and the handling of my support and safeguarding concerns

To: Able Point management; the NDIS Quality and Safeguards Commission; relevant NSW police and public authorities; and any legal, advocacy or safeguarding representatives assisting me.

Complainant: Dr Richard William McLean, also known as Dr Barran Dodger / Barran Resonance Dodger.

Person identified in the source record: Rachel, described in my published archive as the person I understand to be Able Point's chief executive, whose position and responsibilities I have expressly requested be confirmed.

Primary documentary source: Barrandodger public evidence archive on GitHub.

Specific source: *LEGAL BRIEF of BARRAN DODGER / DR RICHARD WILLIAM MCLEAN — 23 October 2026*, section 4, "Able Point, Rachel and transparent accountability."

Published document: Read the legal brief in PDF format.

Purpose of this statement

I request a formal, impartial and evidence-based assessment of the conduct I have reported concerning Rachel, the person I understand to be Able Point's chief executive, and the organisation's response to my requests for assistance.

My purpose is protection, practical support and a fair examination of responsibility. I am asking the relevant people and authorities to apply their own legislation, policies, procedures and ethical standards consistently—to the person complained about, to the organisation, and to me.

I expect my evidence to be examined, my concerns to be answered, the relevant records to be preserved, and responsibility to be identified wherever the evidence establishes it.

I do not accept that the existence of an allegation is a reason to avoid examining it. Nor should an executive position, organisational procedure or administrative boundary make the underlying conduct immune from scrutiny.

My published archive contains a broader documentary history of my attempts to obtain assistance, preserve records and secure accountability. The archive is available here:

THE BARRANDODGER DOCUMENTARY ARCHIVE — GitHub

The relevant source records my concerns about Able Point, the quality and appropriateness of support, my ability to exercise choice, the conduct of staff, the handling of my objections, and the cumulative effect of my circumstances on my independence and welfare.

The source also expressly requests preservation and review of relevant case notes, incident reports, staff communications, service records, complaints, assessments and correspondence.

These are matters I require the appropriate authorities to examine against the original records.

1. Fairness must include the person reporting harm

I recognise that Rachel is entitled to privacy, procedural fairness and an opportunity to respond. I request an equally serious opportunity to present my evidence, have the substance of my complaint understood, and receive an impartial assessment.

The NDIS Commission's published guidance describes procedural fairness as including a reasonable opportunity for the complainant to present their complaint, alongside an opportunity for the person complained about to respond before adverse action. Decisions about adverse action must be impartial and based on the facts and issues

examined.

I ask the relevant decision-makers to apply that framework consistently.

Source 1: NDIS Commission — Complaints about supports and services you provide.

Source 2: National Disability Insurance Scheme (Procedural Fairness) guidance and instrument.

If privacy, confidentiality, safety or another legal restriction limits the response, identify the applicable restriction and explain what can still be assessed, preserved, disclosed or referred.

I am not seeking unrelated personal material. I am seeking an accountable response concerning professional conduct, organisational decisions and matters affecting my supports.

The standards that protect a person against an unfair accusation must not be applied in a way that leaves the complainant without a meaningful opportunity to be heard.

2. Identify Rachel's actual position, responsibilities and authority

My published archive identifies the person as Rachel and describes her as the person I understand to be Able Point's chief executive.

The relevant section states:

> **"I have also raised concerns about Rachel, whom I understand to be the organisation's chief executive, including my difficulty obtaining clear confirmation of her role and responsibility."**

It continues by requesting that the organisation's relevant management and complaint structures be identified in writing and that Rachel's role be confirmed, or the appropriate executive or manager identified.

Direct documentary reference: Barrandodger repository — published legal brief.

I request written confirmation of:

1. **Rachel's full professional name, to the extent appropriately disclosable.**
2. **Her actual position and the dates during which she held it.**

3. **Her responsibilities concerning my accommodation, support arrangements, complaints and safeguarding concerns.**
4. **The decisions she personally made, authorised, reviewed or referred to other staff.**
5. **The limits of her authority and the identity of any other person responsible for the relevant decisions.**
6. **The appropriate management contact and independent escalation pathway for my complaint.**

The purpose of these questions is to establish the correct identity, position and responsibility from organisational records, not to substitute an assumption for verification.

If Rachel is not the person responsible for a particular decision, identify the actual decision-maker. If responsibility was distributed among several people, identify the respective roles and the records supporting that account.

Uncertainty about who holds responsibility must not become a reason for the underlying complaint to remain unanswered.

3. Examine professional conduct against the standards attached to the role

The NDIS Code of Conduct addresses respect, safety, competence, integrity, honesty, transparency and action on concerns about support quality and safety.

It applies to registered and unregistered NDIS providers and workers, subject to the relevant requirements.

Source 3: NDIS Commission — Participant Pack.

Source 4: NDIS Code of Conduct — Provider Guidance.

I request assessment of the reported conduct against the requirements that actually apply to the individuals, organisation and services involved.

In particular, please establish:

1. **What responsibilities Rachel held and what authority she exercised over my supports or complaint.**
2. **What assistance Able Point agreed to provide.**
3. **What concerns, risks and unmet needs I communicated, when, and to whom.**
4. **What action, assessment, escalation or referral followed.**
5. **Whether relevant decisions complied with the applicable Code, service**

agreement, complaints procedures and safeguarding requirements.

6. **Whether any failure was attributable to an individual decision, organisational practice, a failure of communication, or circumstances outside the provider's responsibility.**

Please distinguish Rachel's conduct from that of other workers and from the organisation's responsibilities.

An executive title does not, by itself, establish personal liability. Equally, uncertainty about individual responsibility must not prevent examination of organisational conduct or the identification of the person responsible for a decision.

Where the evidence supports a concern, I expect the finding and corrective action to be identified. Where the evidence is insufficient, I expect the gap to be explained and any available further investigation to be considered.

4. Apply the complaints and safeguarding framework

I request that this complaint be assessed under the National Disability Insurance Scheme Act 2013, the NDIS Code of Conduct Rules 2018 and, where applicable, the Complaints Management and Resolution Rules 2018 and the relevant incident-management framework.

Source 5: NDIS Commission — Code of Conduct Provider Guidance.

Source 6: NDIS Commission — Complaint-handling guidelines for providers.

Please determine separately:

- **Whether my complaint requires investigation or another form of assessment.**
- **Whether any reported event requires an incident-management response.**
- **Whether a notification or referral is required.**
- **Whether immediate practical support is needed while disputed matters are examined.**
- **Whether the organisation's handling of my complaint complied with the applicable requirements.**
- **Whether any failures require corrective action, changes to procedures or further referral.**

I am not asking the recipient to assume that every allegation is a reportable incident or criminal offence. I am asking the responsible authority to determine the correct classification and explain its decision.

The distinction between a complaint, an incident, a regulatory issue and a potential criminal matter must be established through the applicable requirements and the evidence.

5. Manage conflicts of interest and preserve the evidence

If Rachel is the subject of the complaint, I request that she not be its sole assessor or final decision-maker.

Please identify any actual or apparent conflict of interest and explain how it will be managed. Where appropriate, allocate the assessment to a person independent of the conduct complained about.

Please preserve relevant records, including:

- **Emails and messages.**
- **Service agreements and consent records.**
- **Support notes and case notes.**
- **Rosters and service delivery records.**
- **Invoices and relevant funding records.**
- **Complaints and responses.**
- **Incident reports and risk assessments.**
- **Internal communications concerning my support and accommodation.**
- **Decisions, referrals and records of the reasons for those decisions.**

Preservation and disclosure should occur subject to applicable law, privacy obligations and lawful retention requirements.

For each allegation, I request that the assessment identify:

1. **The alleged act or omission.**
2. **The evidence supporting or contradicting it.**
3. **The responsibility or standard considered.**
4. **The finding, including where the evidence is insufficient.**
5. **The reasons for the finding.**
6. **Any corrective action, referral or further examination required.**

I ask that supporting and contrary evidence both be examined.

My request is for a reliable determination based on records and reasons. I do not accept an unexplained dismissal of a complaint as an adequate substitute for examination.

6. Assess my present needs without requiring the entire complaint to be resolved first

My published legal brief records my objections concerning my accommodation, independence, treatment, ability to leave and access to appropriate assistance.

Source 7: Barrandodger — 23 October 2026 Legal Brief.

My current safety, essential needs, transport and continuity of agreed supports must be assessed separately from the determination of disputed allegations.

Please identify:

- **What practical assistance is available within your role.**
- **Who is responsible for arranging that assistance.**
- **When the assistance can be provided.**
- **What arrangements exist to maintain essential supports while the complaint is considered.**
- **What alternative pathway is available if a requested service falls outside your responsibility.**

Please explain how my access to essential supports will be protected while I pursue this complaint.

The NDIS framework recognises the importance of enabling people to raise concerns without fear of adverse consequences. I request that any proposed change to my supports be appropriately justified, documented and assessed against the applicable requirements.

I need a practical response to my circumstances, not simply a statement that the complaint has been received.

7. Apply police and public-authority standards impartially

For police, I request assessment of any specific alleged criminal conduct on its evidence and the applicable legal threshold.

Neither my account nor a provider's account should automatically determine the outcome without appropriate examination.

Where NSW Police are involved, I request that the relevant professional standards, complaint procedures and jurisdictional limits be identified.

Source 8: NSW Police Force — Standards of Professional Conduct.

Source 9: Law Enforcement Conduct Commission — Understand what you can report.

Please identify which matters fall within police responsibility and which belong with a regulator, service provider, ombudsman or another authority.

For public authorities, identify the power, policy or procedure under which this submission is being considered.

For legal and advocacy representatives, identify the assistance available within your role or agreed engagement.

I recognise that different recipients have different responsibilities. I request that each recipient address the matters within its authority and identify a proper pathway for any matter outside its jurisdiction.

The existence of different agencies must not result in a situation in which each institution directs me elsewhere while the underlying issue remains unresolved.

8. Address the specific matters documented in my archive

The repository contains a broader record of my objections and requests concerning Able Point, my accommodation and my support arrangements.

The section concerning Rachel specifically identifies concerns about:

- **The quality and appropriateness of support.**
- **My ability to exercise choice.**
- **The conduct of staff.**
- **The handling of my objections.**
- **The cumulative effect of the arrangements on my independence and welfare.**
- **The need to identify the management and complaint structures.**
- **The need to preserve and review relevant case notes, incident reports, staff communications, service records, complaints, assessments and correspondence.**

Primary source: Barrandodger public archive.

Published legal brief: Direct PDF.

I request that these issues be considered individually, with the relevant underlying records identified wherever possible.

Please do not collapse distinct matters into a general statement that fails to address the substance of the complaint.

If a concern involves Rachel personally, identify the relevant decision or omission and the evidence concerning her role. If it concerns another worker, identify that worker's relevant responsibilities. If it concerns Able Point's systems or management, assess the organisation's processes and obligations.

If the records reveal that a concern has already been addressed, identify the action taken and provide the reasons and records that can lawfully be disclosed.

If the records reveal that a concern remains unresolved, identify the action required to address it.

If records are missing, identify the gap and explain what searches or inquiries have been undertaken.

9. Establish the documentary record and preserve the source links

My archive exists to preserve my testimony and the documentary trail surrounding the matters I have raised.

I request that the recipient retain the links and documents supplied with this statement, record which materials have been received and identify any material that cannot be accessed.

The central repository is:

https://github.com/wezzo72/Barrandodger

The legal brief relevant to this complaint is:

https://wezzo72.github.io/Barrandodger/2026-10-23-LEGAL-BRIEF-of-BARRAN-DODGER-DR-RICHARD-WILLIAM-MCLEAN.pdf

The source identifies the relevant section as "Able Point, Rachel and transparent accountability."

I ask that the exact name used in the source, Rachel, be retained when the record is referenced, while her full professional identity and position are confirmed from appropriate organisational records.

Please do not silently substitute a different spelling, invent a full name or attribute a role without verification.

Where other records identify the same person more fully, link those records to the relevant events and explain how the identity has been verified.

The point of preserving records is to make the documentary trail intelligible and reviewable.

10. Provide a response that can be understood and reviewed

Please provide:

1. **A complaint or reference number and a named contact.**
2. **Confirmation of the identity and professional role of the person complained about, to the extent lawfully appropriate.**
3. **The issues accepted for assessment and any issues outside your jurisdiction.**
4. **The applicable process and anticipated timeframe.**
5. **Any immediate safeguarding or support action.**
6. **Any further evidence required from me.**
7. **A substantive outcome and reasons, to the extent disclosure is lawful.**
8. **Any available review, reconsideration or external complaint pathway.**
9. **Confirmation that relevant evidence has been preserved, subject to applicable law.**
10. **Identification of the responsible decision-makers and the management or complaint structure.**
11. **An explanation of any referral, non-investigation decision or jurisdictional limitation.**
12. **A practical response to my current support needs while the complaint is being considered.**

If you decide not to investigate, explain whether that decision concerns jurisdiction, insufficient particulars, available evidence, another process or some other reason.

Please distinguish a decision not to investigate from a finding that an allegation is false.

If the complaint is referred elsewhere, identify the receiving authority and explain the relevant pathway. Where lawful and appropriate, confirm what has been referred and what action remains outstanding.

I request a response that addresses the actual matters raised rather than merely acknowledging receipt.

11. Apply the same protective standards to every person involved

I am asking for the standards that protect people from unfair accusations to be applied alongside the standards that protect people receiving disability supports.

Fairness requires careful examination, impartial decision-making, appropriate support and reasons for the outcome.

The relevant questions are not resolved merely by identifying a person as an executive, a provider as an organisation or a complainant as someone who disputes the arrangements.

The relevant questions concern the actual decisions, the duties applicable to those decisions, the evidence available at the time, the action taken and the consequences for the person receiving support.

I ask the authorities to establish those matters from the records.

If the evidence supports a concern, identify the corrective action available. If it does not support a concern, explain the conclusion by reference to the evidence examined. If the evidence is incomplete, identify what remains unresolved.

I am not asking you to take my side irrespective of the evidence. I am asking you to take my safety, evidence and rights seriously, and to determine whether the conduct I have reported complied with the responsibilities attached to the relevant roles.

12. Formal request for action

I formally request:

A. Identity and responsibility: Written confirmation of Rachel's professional identity, actual role, responsibilities and involvement in the matters complained about.

B. Complaint assessment: A documented assessment of my concerns concerning Able Point, its staff, management, support delivery and handling of my objections.

C. Independent handling: Appropriate management of any actual or apparent conflict of interest.

D. Evidence preservation: Preservation of relevant service, incident, complaint,

communication, assessment and decision records.

E. Safeguarding: Assessment of my current safety, essential needs and continuity of supports, separately from the final outcome of the complaint.

F. Findings and reasons: A reasoned response identifying the evidence examined, the standards applied, the findings made and any unresolved matters.

G. Accountability: Identification of the person or organisation responsible for each relevant decision or omission, to the extent established by the available evidence.

H. Referral: An identifiable pathway for any matter outside the recipient's authority.

I. Review rights: Information about the applicable review, reconsideration and external complaint mechanisms.

J. Written timetable: A named contact, confirmation of receipt and an indication of when a substantive response can be expected.

If any request cannot be met, identify the reason, the relevant limitation and any alternative means by which the information or review can be obtained.

Conclusion: The record must be examined

My published archive records my concerns about Able Point, Rachel, the handling of my objections, the quality of support and the effect of the arrangements on my independence and welfare.

The record is available for examination: https://github.com/wezzo72/Barrandodger.

I expect the responsible people and authorities to examine the relevant records, identify the applicable standards, establish who made the decisions, and provide a substantive response.

I do not accept the idea that the existence of allegations is a reason to avoid the work of examining them.

I do not accept unexplained silence as an adequate answer to serious concerns about support, safeguarding and independence.

I request a human response, a documented response and an accountable response.

My safety, dignity and independence matter. My evidence deserves examination. My rights must be considered under the applicable law, and decisions affecting me must be explained through the relevant records and procedures.

My life is not your spreadsheet.

My freedom is not yours to allocate.

My dignity is not yours to diminish.

My humanity is not an administrative inconvenience.

My survival is my testimony, and my testimony will remain on the record.

I expect written confirmation of receipt and a substantive response addressing the matters set out above.

Signed: Dr Richard William McLean
Also known as: Dr Barran Dodger / Barran Resonance Dodger

FORMAL DEMAND FOR INDEPENDENT INVESTIGATION, INSTITUTIONAL ACCOUNTABILITY AND EVIDENCE-BASED DETERMINATION

To: The relevant provider regulator, administrative oversight bodies, police oversight authorities and integrity bodies within jurisdiction.

From: Dr Richard William McLean, also known publicly as Dr Barran Dodger.

Subject: Able Point, NDIS-related support and safeguarding concerns, subsequent complaint handling and the accountability of relevant institutions.

I request an independent examination of the documented circumstances concerning Able Point and the subsequent handling of related concerns by relevant NDIS bodies, police and oversight institutions.

This request is not confined to the original provider-related allegations. It expressly includes the decisions, omissions, referrals and responses of the institutions subsequently responsible for receiving, assessing, investigating or reviewing those matters.

The investigation must establish what happened, identify the original evidence, determine which obligations applied, identify the responsible decision-makers and examine whether the available records support findings of non-compliance, administrative error, maladministration, misconduct or potentially corrupt conduct.

I request that no previous institutional decision be treated as conclusive merely because it was made by an authorised body. Its evidentiary basis, jurisdiction, reasoning and handling of relevant information should be examined where a specific and properly grounded concern has been raised.

I further request that any potential serious or systemic corruption involving Commonwealth public officials be assessed against the National Anti-Corruption Commission's jurisdiction and statutory criteria, and that matters outside its jurisdiction be directed to the appropriate authority.

I request that relevant records be preserved in accordance with applicable obligations and that each institution identify the material records it holds, the decisions made, the reasons available for those decisions and any outstanding question within its jurisdiction.

Where a failure is established, I request a reasoned determination identifying the corrective action, responsible authority and available review mechanism.

Where an allegation cannot be established, I request that the basis for that conclusion be recorded accurately, with the relevant evidentiary limitations identified.

The investigation should not presume guilt, but neither should it presume institutional correctness. The same standards of evidence, legality, accountability and reasoned decision-making must apply to the provider, the complaint-handling institutions and any officials whose conduct is properly within scope.

The purpose of this request is to establish a verifiable record of responsibility, obtain independent examination of unresolved issues and ensure that any substantiated failures are addressed through the appropriate legal and regulatory mechanisms.

Preservation first. Examination second. Conclusion last.

The record remains available for independent scrutiny. The requested outcome is not a predetermined verdict. It is an evidence-based determination of what happened, who was responsible, which obligations applied, whether those obligations were met and what action must follow from the findings.

This document is submitted as a formal request for **accountability**, independent examination and practical assistance. It brings together my first-person testimony, a chronology of identified records, and an itemised assessment of potential disability-support and human-rights concerns. Its central subjects are my reported inability to leave my circumstances independently, barriers to accessing essential resources, the adequacy of disability supports, and the handling of repeated requests for assistance and safeguarding intervention. The accompanying report identifies the records and questions I ask you to examine.[1]

Please read this material as both a documentary submission and a request for a substantive response—not merely as correspondence to acknowledge, categorise or redirect. I ask you to establish what was communicated, what responsibilities arose, what decisions were made, what action followed, and what remains unresolved. The report distinguishes source documents, my testimony, my interpretations and matters requiring further evidence. It does not ask you to accept every allegation without examination; it asks you to undertake that examination without allowing uncertainty about one issue to displace consideration of the others.[1]

Identify the executive. Answer the complaint.

The record will remain

You may dismiss me, ignore this letter, dispute my account or question my credibility. None of those responses answers the matters I have raised. I am a human being entitled to dignity, and I will continue to demand **accountability** for decisions affecting my safety, support and independence.

I have preserved this letter and its supporting material and, as I report, published and blockchain-timestamped the record. My purpose is to preserve what I reported, when I reported it, the evidence I supplied and the response I received. A timestamp does not itself prove every allegation or guarantee that every published copy will remain accessible. Its significance is that it can support examination of the record’s existence and integrity—not substitute for examination of its contents.

I submit this as my formal complaint and documentary account. I ask that the supporting evidence be examined, the allegations answered and the relevant records preserved. Silence will not resolve the complaint. Attacking my character will not answer the evidence. Disputing one allegation will not dispose of the others.

If Able Point receives payment for my supports, I require a transparent account of what was charged, what was delivered and how those services addressed my needs. If Rachael exercises executive authority, I require her professional identity and a substantive response to the conduct I have reported.

This is not a demand for personal humiliation. It is a demand that professional authority, public funding and responsibility for a vulnerable person's supports be open to scrutiny. My purpose is safety, independence and an enduring record capable of independent examination. I will not allow the substance of my complaint to be replaced by a judgement about whether I deserve to be heard.

Urgent safeguarding complaint: I need practical help to leave, not another unanswered request

I am suffering. I want to leave this property, and I cannot do so independently with the resources and assistance currently available to me. I hold Able Point responsible for answering my requests for support and explaining what it will do now.

I report financial abuse, neglect, harassment and circumstances that leave me feeling trapped and humiliated. Despite my repeated requests, I have not received assistance that has meaningfully changed those circumstances. I have asked staff to report the abuse and neglect I describe; I have not been given confirmation that those concerns have been formally recorded, escalated or notified to the appropriate authority.

I also report distressing experiences that I have described as surveillance, torture and "V2K". I cannot independently establish their cause or who is responsible. That uncertainty does not erase my suffering or excuse a failure to address my practical needs, assess my safety and help me obtain appropriate care.

My request is **action**: help me reach safety, access essentials and obtain independent assistance. Do not make practical support conditional on agreement with every explanation I have offered for what I am experiencing.

Identify the executive responsible

I asked the person presented to me as Rachael, CEO of Able Point, to provide her surname and confirm her professional identity. She refused. That is my account of the exchange. If Able Point disputes it, identify precisely what is disputed and provide its account in writing.

I require her full professional name, position and authority, the provider's legal entity name,

and the identity of the officer responsible for my complaint. I am not requesting her home address or private identification documents. I am asking who exercises executive authority over the organisation delivering my supports.

I regard the refusal as unacceptable professional opacity in circumstances where I am reporting serious harm. I also require transparency about services charged for, services actually delivered, and the decisions affecting my ability to leave. Whether anyone improperly benefited financially must be established through those records—not left unanswered.

Meet the obligations attached to providing my supports

The NDIS Code of Conduct requires providers and workers to act with integrity, honesty and transparency, deliver supports safely and competently, act promptly on quality and safety concerns, and take reasonable steps to prevent and respond to abuse, neglect and exploitation. These obligations apply to registered and unregistered NDIS providers.[1]

Registered providers also have incident-reporting obligations covering qualifying allegations of abuse or neglect connected with delivering NDIS supports. I require an explanation of how my concerns were assessed, what was recorded, what protective action followed, and whether notification was required and made.[2]

The refusal to provide a surname does not, by itself, prove a legal breach. My complaint is broader: whether the organisation's conduct obstructed accountability, failed to address reported harm, or breached its support, safeguarding and complaint-handling obligations.

My demands for a written response

1. Assess my immediate safety and identify practical assistance to help me leave safely.
2. Identify the executive and complaint officer responsible.
3. Confirm which allegations have been recorded and escalated, and to whom.
4. Explain any decision not to report or act on a safeguarding concern.
5. Provide relevant service agreements, delivery records, invoices, complaint records and incident records, subject to lawful access requirements.
6. Support my access to an independent advocate and an alternative provider where needed.
7. State what will happen next, who will do it and when.

I intend to preserve my correspondence and the responses I receive as part of my documentary record. I will distinguish my testimony, the documents, disputed allegations and established findings. I require relevant records to be preserved—not lost, overwritten or removed from consideration.

I am asking for help to change my circumstances. An acknowledgement is not transport. A referral is not confirmation that help has arrived. A complaints process is not a substitute for assessing an immediate safety concern.

Identify who is responsible. Address the reported harm. Tell me what practical action you will take.

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Outside the draft: because you say you cannot leave and are suffering, immediate safety matters more than strengthening the wording. If someone is physically preventing you from leaving, threatening you, or you need urgent medical care, call 000. You can also contact the NDIS Commission directly on 1800 035 544; its complaint pathway is available when you cannot resolve matters with your provider or do not feel able to complain to it directly.[2]

Sources
[1] The NDIS Code of Conduct https://www.ndiscommission.gov.au/sites/default/files/2022-07/NDIS%20Commission%20-%20Conduct.pdf
[2] provider-information-pack-full-pack.docx https://www.ndiscommission.gov.au/sites/default/files/2022-05/provider-information-pack-full-pack.docx
[3] Know your obligations https://www.ndiscommission.gov.au/sites/default/files/2024-12/NDIS-Code-of-Conduct-Know-your-obligations-PDF.pdf
[4] participantinformationpack-fullversion-june-2020.docx https://www.ndiscommission.gov.au/sites/default/files/2022-03/participantinformationpack-fullversion-june-2020.docx
[5] NDIS Code of Conduct - Australian Government https://ablis.business.gov.au/service/ag/ndis-code-of-conduct/46725
[6] June roadshow https://www.ndiscommission.gov.au/sites/default/files/2022-02/ndis-commission-information-session-presentation-slides-june-2019.pdf
[7] Participant Pack https://www.ndiscommission.gov.au/provider-and-participant-packs/participant-pack
[8] Our achievements during this year - Transparency Portal https://www.transparency.gov.au/publications/social-services/ndis-quality-and-safeguards-commission/ndis-quality-and-safeguards-commission-annual-report-2023-24/part-2---about-us/our-achievements-during-this-year
[9] Video: Eliminating violence, exploitation, neglect and abuse https://www.ndiscommission.gov.au/rules-and-standards/ndis-code-conduct/code-conduct-videos/video-eliminating-violence-exploitation-neglect-abuse
[10] ndis-code-conduct-summary-workers- ... https://www.ndiscommission.gov.au/sites/default/files/2022-02/ndis-code-conduct-summary-workers-text-only.docx

I asked the person presented to me as Rachael, Chief Executive Officer of Able Point, to provide her surname and confirm her professional identity. She refused. I require a direct written answer: identify the executive responsible and explain that refusal.

I am a person receiving disability supports, not an inconvenience to be managed. I am entitled to raise concerns about the people and organisation delivering those supports. My request was for professional identification—not a home address, private identification documents or personal information unrelated to her role.

My concern is **accountability**. An executive exercising authority over an organisation delivering my supports should not leave me unable to identify who is responsible for decisions affecting me. I reject being placed in the position of having to disclose my needs, circumstances and vulnerabilities while the person presented as the organisation's chief executive refuses to confirm her full professional name.

I regard this refusal as a serious failure of professional transparency. In the context of the treatment I have reported, I experience it as part of a broader pattern of abuse, obstruction and circumstances that leave me unable to leave independently. Those concerns require investigation and practical action. They must not be reduced to a disagreement about a surname.

Apply the standards. Establish responsibility.

Section 6(d) of the [National Disability Insurance Scheme (Code of Conduct) Rules 2018](https://www.legislation.gov.au/F2018L00629/latest) requires integrity, honesty and transparency. Section 6(e) requires prompt steps to raise and act on concerns affecting the quality and safety of supports. I ask Able Point to explain how its handling of my request and my underlying safety concerns met those requirements.[1][2]

If Able Point is a registered provider, section 73W of the [National Disability Insurance Scheme Act 2013](https://www.legislation.gov.au/C2013A00020/latest/text) and Part 2 of the [Complaints Management and Resolution Rules 2018](https://www.legislation.gov.au/F2018L00634/latest) also govern its complaints-management arrangements. The applicable NDIS Practice Standards require an accessible complaints system in which participants' concerns are acknowledged, respected and well managed. I request examination of whether the refusal obstructed that process or concealed responsibility for decisions.[3][4][5]

I am not asking for reassurance about the organisation's intentions. I am asking for an

answer about its conduct.

Provide, in writing:

1. Rachael's full professional name, position and authority.
2. Able Point's legal entity name and the identity of the officer responsible for my complaint.
3. The reason my request for professional identification was refused.
4. A substantive response to my reported abuse, safeguarding concerns and inability to leave independently.
5. The practical action that will now be taken, by whom and when.

If Able Point disputes my account, identify precisely what is disputed and provide the relevant records. Do not substitute a general denial for an answer.

My immediate needs and my complaint both require attention. Identifying the responsible executive does not resolve the alleged harm. It establishes who must answer for the organisation's response.

Sources
[1] National Disability Insurance Scheme (Code of Conduct) Rules ... https://www.legislation.gov.au/F2018L00629/latest
[2] The NDIS Code of Conduct https://www.ndiscommission.gov.au/sites/default/files/2024-10/Code-of-Conduct-Provider-Guidance.pdf
[3] National Disability Insurance Scheme Act 2013 https://www.legislation.gov.au/C2013A00020/latest/text
[4] National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018 https://www.legislation.gov.au/F2018L00634/latest
[5] NDIS Practice Standards and Quality Indicators https://www.ndiscommission.gov.au/sites/default/files/2022-02/ndis-practice-standards-and-quality-indicatorsfinal1.pdf

Why your role requires a response

The ethical responsibility engaged by this submission is to use the authority entrusted to your role with care, honesty, fairness and respect for the person affected. For NDIS providers and workers, those expectations are also reflected in the NDIS Code of Conduct: respect for individual rights and self-determination; safe and competent supports delivered with care and skill; integrity, honesty and transparency; and prompt action on concerns that may affect the quality and safety of supports. These requirements make reported safety and support concerns matters to assess and act upon—not matters that can be answered adequately by an acknowledgement alone.[2][3]

For registered NDIS providers, the National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018 impose additional complaint-management requirements, including procedural fairness. Commission guidance also identifies the importance of accessible complaint handling, keeping complainants informed, and taking reasonable steps to ensure that people are not adversely affected because they complain. I therefore ask that this submission be handled transparently, with a named responsible officer, an explanation of the process and meaningful updates about the steps being taken.[4][5]

For the NDIS Quality and Safeguards Commission, this submission requests the exercise of the complaint-handling and regulatory functions applicable to the matters raised. The Complaints Management and Resolution Rules provide for informing complainants about specified actions required of a provider and, where a resolution process is undertaken, notifying relevant parties of its outcome. I ask for a clear explanation of which issues the Commission will examine, what further information is needed, and the reasons for any decision to take no further action.[6]

For other public authorities, advocates and legal representatives, this document requests action within your particular powers, professional responsibilities or agreed engagement. It does not assert that every recipient has the same statutory duties. If an issue falls outside your authority, I ask you to identify that limitation precisely and explain any referral or other assistance you can provide, rather than leaving responsibility undefined.

Relevant legislation and safeguarding obligations

The principal domestic framework for the NDIS-related concerns is the National Disability Insurance Scheme Act 2013 and the rules and standards administered by the NDIS Commission, including the Code of Conduct, complaints-management requirements and incident-management requirements. Which obligations apply must be determined by the recipient's role, the provider's registration status, the services involved and the circumstances of each reported event.[7][8]

A safeguarding allegation may also require a response separate from the ordinary complaints process. Registered providers must notify the Commission of incidents that meet the reportable-incident requirements and are connected with delivering NDIS supports or services. Relevant categories include alleged abuse or neglect and serious injury; most categories require notification within 24 hours of the provider becoming aware. This does not mean that every concern in this document is automatically reportable. It means that the applicable criteria must be assessed promptly, rather than postponed until every dispute has been resolved.[9]

The accompanying assessment also discusses discrimination law and international human-rights instruments. It preserves the distinction between potentially enforceable domestic duties and the broader obligations international treaties place on Australia. Those references are presented as a framework for examination, not as a declaration that a court or regulator has already established a breach.[1]

The response requested

I ask each recipient to respond to the matters within their responsibility by:

1. Acknowledging receipt and identifying the person or team responsible for handling this submission.
2. Assessing any current safety or essential-support needs separately from the longer investigation.
3. Identifying the issues accepted for examination, the applicable process and the anticipated response timeframe.
4. Preserving relevant correspondence, service records, assessments, complaint records and incident records.
5. Providing an issue-by-issue response that distinguishes accepted facts, disputed facts, missing evidence, decisions and proposed action.
6. Explaining any decision not to investigate, escalate, notify or provide assistance, including the basis for that decision.
7. Identifying available review, advocacy or referral pathways where you cannot resolve an issue.

These requests reflect the report's stated purpose: to connect the documentary record with the responsibilities of those asked to examine it and to obtain practical answers to unresolved needs.[1]

You are not being asked to prejudge the evidence. You are being asked to engage with it fairly, recognise the responsibilities attached to your role, and explain what you will do. The immediate request is for practical assistance where needed; the continuing request is for an accessible, evidence-based examination of the record and a reasoned response to the questions it raises.[1]

***

Additional draft section — Ethics, role-specific responsibilities and legislative basis

1. The ethical basis of this request

I ask each recipient to approach this submission according to the responsibilities of their actual role: care in responding to reported harm, respect for my autonomy, fairness in examining disputed information, honesty about the limits of their authority, and transparency about decisions affecting me.

These are the ethical expectations underlying my request. Where the recipient is an NDIS provider or worker covered by the Code of Conduct, several of these expectations also correspond to express legal requirements. The Code addresses respect for individual rights, privacy, safe and competent supports, integrity and transparency, action on quality and safety concerns, and prevention of and response to violence, exploitation, neglect and abuse.[2][10]

The existence of disputed allegations does not remove the need to examine identifiable support and safety concerns. Equally, a fair examination must not assume that an allegation has been proved merely because it has been reported. I ask for both safeguards: a serious response to the concerns and an evidence-based determination of the facts.

2. NDIS providers and workers — respect, competence, integrity and action

Legislative documents:

- [National Disability Insurance Scheme Act 2013 — including section 73V, NDIS Code of Conduct](https://www.legislation.gov.au/C2013A00020/latest/text).
- [National Disability Insurance Scheme (Code of Conduct) Rules 2018 — sections 5 and 6] (https://www.legislation.gov.au/F2018L00629/latest).

Section 5 of the Code Rules identifies the persons covered; section 6 sets out the conduct requirements. These include respect for individual rights and self-determination, privacy, safe and competent service delivery with care and skill, integrity, honesty and transparency, prompt action on quality and safety concerns, and reasonable steps to prevent and respond to violence, exploitation, neglect and abuse. The Act provides the statutory basis for the Code in section 73V.[2][10][11]

Accordingly, I ask the provider to identify:

- What assistance it agreed to provide.
- What risks and unmet needs were communicated to it.
- What assessment, practical action, escalation or referral followed.
- What remains within its responsibility and what does not.
- What steps it will now take to address any identified gap.

This request does not presume an unlimited obligation to provide every service I seek. It asks the provider to explain how its conduct met the requirements applicable to the supports it delivered and the concerns it received.

3. Registered providers — accessible complaints and procedural fairness

Legislative documents:

- [National Disability Insurance Scheme Act 2013 — sections 73W and 73X](https://www.legislation.gov.au/C2013A00020/latest/text).
- [National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018 — Part 2, particularly sections 8–12](https://www.legislation.gov.au/F2018L00634/latest).

Section 73W concerns the complaints-management and resolution systems of registered providers; section 73X concerns arrangements for managing and resolving complaints. Part 2 of the Complaints Rules addresses system requirements, procedural fairness, documentation and record keeping, worker responsibilities and referrals.[4][11]

I ask that my complaint be assessed through the applicable system, that the material I provide be considered fairly, and that I receive an understandable explanation of the process and outcome. Please distinguish the factual findings from the reasons for any service or regulatory decision. Where information cannot lawfully be disclosed, explain the limitation rather than treating it as a reason to provide no substantive response.

4. Registered providers — incident management and safeguarding

Legislative document:

- [National Disability Insurance Scheme Act 2013 — sections 73Y and 73Z](https://www.legislation.gov.au/C2013A00020/latest/text).

Section 73Y addresses incident-management systems for registered providers. Section 73Z addresses reportable incidents. The statutory framework distinguishes ordinary complaints from incidents that require management and, where the criteria are met, notification to the Commission. The Commission's guidance expressly includes incidents alleged to have happened in connection with delivering NDIS supports or services.[9][11]

I therefore ask the provider to assess whether any matter in this submission engages its incident-management or reportable-incident obligations. Please identify the concerns

assessed, their classification, the protective action taken, and whether notification was required and made.

A final finding about responsibility should not be treated as a prerequisite for considering an allegation under a reporting framework that expressly includes alleged incidents. At the same time, neither this submission nor the existence of a reporting obligation establishes that every reported event occurred as described.[9]

5. The Commission — regulatory functions, fair consideration and reasons

Legislative documents:

- [National Disability Insurance Scheme Act 2013 — sections 181E, 181F and 181G](https://www.legislation.gov.au/C2013A00020/latest/text).
- [National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018 — Part 3](https://www.legislation.gov.au/F2018L00634/latest).

The Act identifies the Commissioner's core functions, registration and reportable-incident functions, and complaints functions. Part 3 of the Complaints Rules provides the framework for dealing with complaints, resolution processes, specified notices, reconsideration, procedural fairness and referrals.[4][11]

I ask the Commission to identify which matters fall within these functions and explain the response it determines is appropriate. Where a complaint or issue is closed, where advice or assistance is given, where provider action is required, or where a resolution process ends, please provide the notice and explanation required by the provisions applicable to that decision. Please also identify any available reconsideration pathway.[4]

This is a request for lawful consideration and an accountable decision—not an assertion that the Commission must adopt my preferred conclusion or undertake every investigative step I propose.

6. Public authorities, advocates and legal representatives — identify the applicable role

The NDIS Act distinguishes the functions of the Agency from those of the Commission. It also separately identifies principles, planning processes, reviewable decisions and regulatory powers. The correct response therefore depends on which entity received the submission and which decision or service is in issue.[11]

I ask public authorities to identify the statutory function under which they are considering this material. I ask advocates and legal representatives to identify the assistance they can

provide within their role or engagement. Receipt of this submission should not be represented as creating a professional retainer or imposing the same duties on every recipient.

Where you cannot act, please explain why, identify any relevant alternative pathway, and clarify whether a referral has actually been made or is merely being suggested. This paragraph states the response I request; it does not claim that an identical referral duty applies to every recipient.

7. Practical action and documentary examination should proceed together

The accompanying report asks for both practical assistance and examination of the documentary record. These are connected but distinct requests. An unresolved dispute about past conduct should not obscure the need to assess present support needs; an immediate practical response should not replace examination of the earlier records and decisions.[1]

Please conclude your response by identifying:

1. Who is responsible for the matter.
2. Which legal or procedural framework applies.
3. What immediate action, if any, will be taken.
4. What further evidence is required.
5. When a substantive decision or update can be expected.
6. What review or escalation pathway is available.

The purpose of this section is to make responsibility identifiable and the response reviewable, while preserving the distinction between ethical expectations, legal obligations, requested assistance and findings that remain to be established.

Sources
[1] Title-this.pdf https://ppl-ai-file-upload.s3.amazonaws.com/web/direct-files/attachments/2169297363/b4dfc993-27e6-429a-be27-2e1b2dfc9162/Title-this.pdf
[2] NDIS Code of Conduct https://www.ndiscommission.gov.au/rules-and-standards/ndis-code-conduct
[3] The NDIS Code of Conduct - ndiscommission.gov.au https://www.ndiscommission.gov.au/sites/default/files/2024-10/Code-of-Conduct-Worker-Guidance.pdf
[4] National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018 https://www.legislation.gov.au/F2018L00634/latest
[5] docx 101KB https://www.ndiscommission.gov.au/sites/default/files/2024-09/complainthandlingguidelinesforproviders_0.docx

[6] Compilations—Agency prepared template https://www.legislation.gov.au/F2018L00634/2026-01-28/2026-01-28/text/original/pdf
[7] Legislation, rules and policies - NDIS Quality and Safeguards ... https://www.ndiscommission.gov.au/about-us/legislation-rules-and-policies
[8] Complaints-policy-Word.docx https://www.ndiscommission.gov.au/sites/default/files/2025-07/Complaints-policy-Word.docx
[9] Reportable incidents | NDIS Quality and Safeguards Commission https://www.ndiscommission.gov.au/rules-and-standards/managing-and-reporting-incidents/reportable-incidents
[10] National Disability Insurance Scheme (Code of Conduct) Rules ... https://www.legislation.gov.au/F2018L00629/latest
[11] National Disability Insurance Scheme Act 2013 https://www.legislation.gov.au/C2013A00020/latest/text

You're hurting me

Rich McLean <richarddrawsstuff@gmail.com> Sat, 24 Oct at 10:01 am
To: Cassie Makey <cassie@ablepointaustralia.com.au>, Rachel K C <Rachel@ablepointaustralia.com.au>, Brett Butler <brett@ablepointaustralia.com.au>, Contact Centre <ContactCentre@ndiscommission.gov.au>, csc@ndiscommission.gov.au <csc@ndiscommission.gov.au>, Complaints (NDIS Commission) <complaints@ndiscommission.gov.au>, NDIS Review <contactus@ndisreview.gov.au>, <ndiscomplaints@ndis.gov.au>, <ndiscommission@ndiscommission.gov.au>, NDIS.REASSESSMENT <NDIS.REASSESSMENT@ndis.gov.au>, Thomas Kelly <NDISco-ord@art.gov.au>, legal@whistleblowers.org <legal@whistleblowers.org>, Impartial Legal <impartiallegal@gmail.com>, Rich McLean <richarddrawsstuff@gmail.com>

THE BARRAN DODGER HUMANITARIAN AND DOCUMENTARY REPORT

A First-Person Account of Entrapment, Unmet Care Needs, Alleged Abuse, Financial Inaccessibility, Whistleblower Vulnerability, Institutional Failure and a Desperate Appeal for Protection

Author: Dr Richard William McLean — Barran Dodger
Location: 55 Archbold Road, Long Jetty, New South Wales, Australia
Contact: 0431 300 940
UNHCR reference supplied: UR/UST/23/AUS/17
Documentary archive: https://github.com/wezzo72/Barrandodger

Purpose: Emergency humanitarian appeal, first-person testimony, safeguarding complaint, documentary finding aid and request for independent assessment.

This is a first-person account of reported experiences, allegations, concerns and interpretations. The statements attributed to individuals and organisations require appropriate verification. The report is intended to preserve the account, communicate the urgency of the circumstances and identify matters requiring independent examination. It is not a judicial determination.

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1. EXECUTIVE SUMMARY: A PERSON ASKING TO BE HELPED TO LEAVE

I am Dr Richard William McLean, known publicly as Barran Dodger. I am asking for immediate practical assistance to leave my current circumstances, establish safety, regain access to my limited financial resources, obtain necessary care for my dog, and secure independent support.

I describe myself as a vulnerable person, an alleged victim of serious institutional failures and an unprotected whistleblower. I believe that my repeated attempts to obtain protection have failed and that I have been left in circumstances in which I cannot adequately protect myself or independently secure the services I need.

My immediate situation, as I report it, is straightforward and urgent.

I want to leave my current location, but I cannot do so independently. I say that the government took my car, depriving me of a means of transport and independence. I have very limited financial resources, and I report being unable to access the money I have through Commonwealth Bank's online banking and mobile application. I attribute that loss of access to Phillip Glass, although the precise technical and administrative circumstances need to be independently established.

Itemised legal and human-rights assessment of the alleged Able Point / NDIS failures

Subject: The reported treatment of Dr Richard William McLean, the adequacy of disability supports, alleged failures of safeguarding, and the consequences for safety, dignity, independence and access to essential services.

Primary source: The Barran Dodger Humanitarian and Documentary Report, contained in your uploaded email, "You're hurting me", dated 24 October 2026.

The assessment below identifies each potential breach, the relevant Australian legislation, the NDIS Code of Conduct and Practice Standards, and applicable international human-rights instruments. It distinguishes between what your report says happened, the legal duty that may apply, and what would need to be established before a breach could be formally found.

Important distinction: A failure to provide a requested service is not automatically an unlawful act. The decisive questions include what Able Point agreed to provide, what risks it knew about, what action was reasonably available, whether a support plan or funding restriction applied, and whether its response complied with the law and applicable standards.

Your report nevertheless raises several concrete matters that warrant investigation, particularly your stated inability to leave independently, the reported lack of practical assistance, the alleged failure to respond to safeguarding concerns, and the difficulties you describe in obtaining transport, essential funds and veterinary care.

Part I — Itemised potential breaches of NDIS law, policy and ethical standards

The following items are framed as specific allegations for investigation, rather than findings of guilt. The strongest starting points are the NDIS Code of Conduct and the participant-rights and safeguarding requirements of the NDIS Practice Standards.

1. Alleged failure to respond to urgent support and safety needs

Priority investigation

Reported conduct: Your report says you repeatedly asked for help to leave your current circumstances, described yourself as unable to leave independently, and requested practical assistance with safety, transport, essential needs and independent support. You allege these requests did not produce an effective response.

Relevant legal provisions

- NDIS Code of Conduct Rules 2018, section 6(c), (e) and (f) — safe and competent supports, prompt action on quality and safety concerns, and reasonable steps to prevent and respond to abuse, neglect and exploitation.
- NDIS Practice Standards, Schedule 1, clauses 3, 7, 12 and 16 — person-centred supports, freedom from abuse and neglect, risk management and continuity of supports.
- NDIS Act 2013, section 4(5)–(10) — the statutory principles concerning participation, independence, dignity, freedom from abuse and neglect, grievances, choice and

control.

Potential breach: If Able Point knew that you could not independently obtain essential assistance, and failed to take reasonable steps within its responsibilities to assess the risk, respond to your requests or arrange an appropriate referral, that may raise concerns under the Code and applicable Practice Standards.

Evidence required: Dated SOS messages, emails, staff notes, rosters, support plans, records of requests for assistance, responses and any risk assessments.

2. Alleged failure to support independence, choice and control

Reported conduct: You say you cannot independently leave your current circumstances and that the loss of transport, limited accessible funds and dependence on support services compound your inability to act independently.

Relevant legislation and standards

- NDIS Act 2013, section 4 — statutory principles concerning individual choice, control, participation and independence.
- NDIS Practice Standards, Schedule 1, clause 6 — Independence and Informed Choice.
- NDIS Code of Conduct, section 6(a) — respect for self-determination and decision-making.

Potential breach: A failure to implement agreed supports that are intended to enable your independence, or an unjustified restriction of your choices within the services being delivered, may breach applicable standards.

The relevant question is not whether a provider must arrange every outcome you request. It is whether the supports it is responsible for delivering genuinely respect your autonomy and assist you to exercise the choices available to you.

Evidence required: Your NDIS plan, service agreement, support schedule, records concerning your wish to leave, and any proposed exit, transition or transport arrangements.

3. Alleged failure to recognise and act on safeguarding concerns

Reported conduct: You allege that you raised concerns about threats, abuse, neglect and other risks, but that staff did not make the reports or take the action you expected. You specifically identify communications with an employee you call Kim.

Relevant legislation

- NDIS Code of Conduct Rules 2018, section 6(e)–(g).
- NDIS Practice Standards, Schedule 1, clause 7 — Freedom from Violence, Abuse, Neglect, Exploitation or Discrimination.
- NDIS Act 2013, sections 73Y and 73Z, concerning incident management systems and reportable incidents for registered providers.

Potential breach: If staff received credible safeguarding concerns and failed to follow required procedures, record relevant incidents, take reasonable protective steps or make a notification required by law, that may constitute a compliance issue.

A provider is not necessarily legally required to report every allegation to police or another agency. The applicable reporting duty depends on the incident, the provider's registration status, the governing rules and the circumstances.

Evidence required: Original communications, incident reports, internal escalation records,

relevant policies, risk assessments and written reasons for any decision not to escalate.

4. Alleged failure to provide supports safely and competently

Reported conduct: You describe unmet practical needs, physical pain, inability to obtain transport, concerns about your dog's health, and what you regard as an inadequate response from your support provider.

Relevant provisions

- NDIS Code of Conduct, section 6(c) — safe and competent supports delivered with care and skill.
- NDIS Practice Standards, Schedule 1, clauses 17–24 — provision of supports, access to supports, support planning, service agreements, responsive support provision and safe environments. The precise clause depends on the type of service.
- NDIS Practice Standards Quality Indicators, risk management provisions.

Potential breach: A failure to deliver an agreed support safely, competently or in accordance with a participant's assessed needs may be a breach of the Code or applicable standards. A provider's responsibility will depend on the services it actually agreed to deliver and the circumstances it knew about.

Evidence required: The service agreement, support plan, progress notes, duty records, relevant clinical advice, and records of the assistance requested and offered.

5. Alleged failure to respond to complaints transparently and effectively

Reported conduct: You say you have repeatedly sought assistance and that your concerns have not resulted in practical intervention. You also report difficulty identifying the responsible decision-maker and allege that the chief executive declined to provide identification.

Relevant legislation

- NDIS Act 2013, sections 73W and 73X — complaints management and resolution requirements for registered providers.
- NDIS Code of Conduct, section 6(d)–(e) — integrity, honesty, transparency and prompt action on safety concerns.
- NDIS Practice Standards, Schedule 1, clause 13 — complaints management and resolution.

Potential breach: If the provider failed to maintain or apply a required complaints system, improperly ignored complaints, or failed to comply with applicable complaint-handling obligations, this warrants regulatory examination.

A refusal to disclose personal identification, by itself, does not establish a legal breach. The relevant issues are whether the provider was identifiable, whether you could access its formal complaints process, and whether it met its legal obligations.

Evidence required: Your complaints, acknowledgements, responses, internal complaint records, applicable policy and details of the provider's responsible officers.

6. Alleged failure to support access to independent advocacy

Reported conduct: You state that you need independent assistance to coordinate services, pursue complaints and establish a practical way to leave your current circumstances.

Relevant provisions

- NDIS Practice Standards, Schedule 1, clause 6 — independence and informed choice,

including support for access to an advocate of the participant's choosing.

- NDIS Practice Standards, Schedule 1, clause 7 — the applicable safeguarding standards address access to advocates when allegations of abuse, neglect, exploitation or discrimination are made.
- NDIS Act 2013, section 4(7)–(9) — grievances, choice and control, and support in dealings with the Agency and Commission.

Potential breach: If Able Point failed to facilitate advocacy where the applicable standards required it, or obstructed your access to an independent advocate, that may be a compliance concern.

This is not a blanket obligation to fund a lawyer or personally provide an advocate. The issue is whether the provider respected your rights and complied with the specific support and safeguarding requirements.

Evidence required: Requests for advocacy, staff responses, referrals offered or refused, and any relevant support-plan provisions.

7. Alleged failure to provide appropriate continuity of supports

Reported conduct: Your report describes repeated requests for help and concern that the responsible support worker was absent or did not provide an effective solution. It also refers to a lack of practical coordination.

Relevant provisions

- NDIS Practice Standards, Schedule 1, clause 16 — Continuity of Supports.
- NDIS Practice Standards, Schedule 1, clauses 8–12 — governance, risk management, quality management and information management.

Potential breach: If required supports were interrupted without reasonable arrangements, or the provider failed to manage foreseeable risks arising from gaps in service delivery, this may raise questions under the applicable standards.

A worker being absent or sitting in a vehicle is not, by itself, proof of a breach. The material issue is whether contracted supports were delivered and whether any interruption was appropriately managed.

Evidence required: Rosters, attendance records, service delivery notes, missed-support records, contingency arrangements and the provider's explanation.

8. Alleged failure to provide responsive support planning

Reported conduct: You identify multiple interconnected barriers, including transport, access to money, physical pain, difficulty obtaining veterinary care, and an inability to leave independently. You ask for coordinated, practical assistance rather than further referrals without a clear next step.

Relevant provisions

- NDIS Practice Standards, Schedule 1, clauses 18–21 — access to supports, support planning, service agreements and responsive support provision.
- NDIS Code of Conduct, section 6(c) and (e) — safe and competent support and action on quality and safety concerns.

Potential breach: If the provider failed to respond to changed circumstances, assess risks, implement the supports it had undertaken to provide, or follow applicable planning requirements, the adequacy of its support planning should be investigated.

Evidence required: Current support plan, goals, agreed responsibilities, records of changed circumstances, risk reviews and any coordination or escalation plan.

9. Alleged failure to address disability-related barriers to mobility

Reported conduct: You say that you cannot leave independently and that the loss of your vehicle, financial difficulties and lack of practical transport assistance compound that problem.

Relevant provisions

- Disability Discrimination Act 1992, sections 5, 6, 22 and 24 — disability discrimination in specified contexts, including services and accommodation.
- NDIS Practice Standards, Schedule 1, clause 6 — independence and informed choice.
- Convention on the Rights of Persons with Disabilities, articles 19 and 20 — living independently, community inclusion and personal mobility.

Potential breach: If a relevant service discriminated against you because of disability, failed to make a legally required adjustment, or failed to deliver agreed mobility-related supports, there may be grounds for a discrimination complaint or NDIS compliance investigation.

The mere fact that a person lacks a car or cannot afford transport does not establish that the NDIS provider has breached a duty to supply a vehicle or pay for every journey.

Evidence required: The nature of your disability-related needs, the supports funded and agreed, requests for transport or assistance, decisions made, and any evidence of less favourable treatment or refusal of reasonable adjustments.

10. Alleged failure to protect dignity and respond appropriately to distress

Reported conduct: You describe distressing interactions, including an alleged threat by Kim to report you to the RSPCA concerning your dog while you were requesting assistance with veterinary care. You also describe feeling humiliated and unsupported.

Relevant provisions

- NDIS Code of Conduct, section 6(a), (c) and (d) — respect for individual rights, safe and competent supports, and integrity and transparency.
- NDIS Act 2013, section 4(5)–(10) — statutory principles concerning dignity, choice, grievances and protection from abuse and neglect.
- NDIS Practice Standards, Schedule 1, clauses 3 and 5 — person-centred supports and privacy and dignity.

Potential breach: If staff used threats, intimidation, degrading treatment or otherwise failed to respect your rights while providing supports, the conduct may warrant investigation under the Code and applicable standards.

A genuine animal-welfare concern can legitimately be raised. The legal question is whether the conduct was appropriate, proportionate and consistent with the worker's duties, not simply whether an RSPCA report was mentioned.

Evidence required: The exact words used, date and context, messages or witnesses, the assistance you requested, and any relevant incident or complaint records.

11. Alleged failure to maintain proper incident records or report a reportable incident

Reported conduct: You allege that safeguarding concerns were raised but that appropriate reports were not made. Your document requests examination of what was reported, what

was recorded, and what was escalated.

Relevant legislation

- NDIS Act 2013, sections 73Y–73Z.
- NDIS Incident Management and Reportable Incidents Rules 2018, sections 9–13 and 16–25.
- NDIS Practice Standards, Schedule 1, clauses 13–14.

Potential breach: For a registered provider, a failure to maintain the required incident-management system, retain required records, or notify the Commission about an incident that falls within a statutory reporting category may be a breach of registration requirements or another applicable obligation.

Not every allegation of poor service is a reportable incident. The nature of the incident, its connection to support delivery, and the statutory definition must be examined.

Evidence required: Incident-management policies, incident register entries, notifications, investigation records, corrective actions and any applicable reporting deadlines.

12. Alleged failure to respect equality and non-discrimination

Reported conduct: Your report includes allegations of degrading language, homophobic abuse and humiliating treatment in circumstances involving people you encountered. It does not, by itself, establish that Able Point staff engaged in each alleged act or that a particular incident was connected to disability discrimination.

Relevant provisions

- Disability Discrimination Act 1992, sections 5, 6 and 22–24, depending on the conduct and setting.
- NDIS Code of Conduct, section 6(a), (c), (d) and (f).
- Convention on the Rights of Persons with Disabilities, articles 5, 16 and 17 — equality and non-discrimination, freedom from exploitation, violence and abuse, and respect for physical and mental integrity.

Potential breach: If discriminatory, abusive or degrading conduct by a worker occurred in the course of providing supports, the NDIS Code may apply. If a relevant person or organisation unlawfully discriminated against you in a covered context, separate discrimination-law remedies may be available.

Homophobic abuse is not automatically a breach of the Disability Discrimination Act: the connection to disability and the relevant statutory context matter. Other legal protections may apply depending on the facts.

Evidence required: The exact language, identities and roles of those involved, dates, witnesses, connection with the support service, and any complaints or responses.

Part II — International human-rights obligations potentially engaged

An important legal distinction applies here: international human-rights treaties generally impose obligations on Australia as a State Party. They do not automatically create an independent, directly enforceable claim against every private disability-support provider. The treaties can nevertheless inform the interpretation of Australian law, government responsibilities, NDIS policy and the assessment of systemic failures.

The principal instrument for this matter is the United Nations Convention on the Rights of

Persons with Disabilities (CRPD).

13. CRPD Article 10 — Right to life

Concern: You report fear for your life, previous threats, and difficulty obtaining protection.

Obligation: Article 10 recognises the inherent right to life of persons with disabilities on an equal basis with others.

Potential issue: If competent authorities were aware of a sufficiently specific and serious risk to your life and failed to take steps required by their applicable legal obligations, the adequacy of the State's protective response may warrant examination.

Qualification: Your report alone does not establish that the State violated Article 10 or that Able Point knew of a legally actionable threat.

Read the CRPD, including Article 10.

14. CRPD Article 12 — Equal recognition before the law

Concern: You describe dependence on others for practical assistance and difficulty exercising independence and control over your circumstances.

Obligation: Article 12 concerns legal capacity on an equal basis with others and access to support that may be required to exercise it.

Potential issue: If a person with disability is denied equal legal recognition or subjected to unjustified substitution of decision-making, Article 12 may be engaged.

Qualification: Needing assistance to manage daily affairs, or having a financial-management arrangement, does not alone prove a violation. The nature, legal basis and practical effects of any arrangement would have to be examined.

15. CRPD Article 16 — Freedom from exploitation, violence and abuse

Concern: You allege that safeguarding complaints were not acted upon adequately and that you were left without effective assistance despite reporting risks.

Obligation: Article 16 requires States Parties to take appropriate legislative, administrative, social, educational and other measures to protect persons with disabilities from exploitation, violence and abuse, including through appropriate monitoring of facilities and programmes.

Potential issue: Evidence that a public authority failed to implement applicable safeguarding protections, or that a provider's conduct revealed a failure in a regulated safeguarding system, could warrant examination against Article 16 and Australian law.

CRPD, Article 16.

16. CRPD Article 17 — Integrity of the person

Concern: You report physical pain, distress and experiences you describe as threats and harassment.

Obligation: Article 17 protects the physical and mental integrity of persons with disabilities on an equal basis with others.

Potential issue: Any substantiated abuse, coercion or other interference with your physical or mental integrity may engage relevant domestic safeguards and the State's CRPD obligations. Your reported pain and distress deserve assessment in their own right. Establishing an international-law violation would require further evidence of the relevant conduct and applicable State obligations.

17. CRPD Article 19 — Living independently and being included in the community

Directly relevant to the reported inability to leave

Concern: You state that you cannot leave your present circumstances independently and seek practical assistance to reach safety, obtain transport and establish alternative arrangements.

Obligation: Article 19 recognises the equal right of persons with disabilities to live in the community, choose their residence and access appropriate community support services.

Potential issue: A failure by government to meet applicable obligations concerning community inclusion and access to support may warrant human-rights scrutiny. A provider's failure to deliver agreed supports may also be relevant to compliance with the NDIS framework.

Qualification: Article 19 does not automatically entitle a participant to any particular accommodation, vehicle or support service. The relevant facts include available choices, disability-related needs, applicable funding and service commitments, and any restrictions imposed.

CRPD, Article 19.

18. CRPD Article 20 — Personal mobility

Concern: You report that the loss of your vehicle and lack of transport options have made it difficult to leave, obtain assistance and meet essential needs.

Obligation: Article 20 requires States Parties to take effective measures to ensure personal mobility with the greatest possible independence.

Potential issue: Evidence that disability-related mobility needs were inadequately addressed by the responsible government systems or that agreed supports were not provided could be relevant to this obligation.

Qualification: Article 20 does not itself establish that Able Point was required to replace your vehicle or provide unlimited transport.

19. CRPD Article 25 — Health

Concern: You report back pain following an alleged vehicle incident and concerns about your dog's health, alongside financial and transport barriers to obtaining care.

Obligation: Article 25 concerns access to health services without discrimination on the basis of disability.

Potential issue: If disability-related discrimination prevented access to appropriate health services, that may warrant examination under Article 25 and applicable Australian legislation.

Qualification: The CRPD health obligation concerns human health services. It does not independently establish a right to NDIS-funded veterinary treatment. The question of veterinary assistance should instead be assessed against the actual support agreement, any relevant plan provisions and the circumstances of the request.

20. CRPD Article 28 — Adequate standard of living and social protection

Concern: You report difficulty accessing money, obtaining food and meeting essential expenses, alongside limited transport and dependence on support services.

Obligation: Article 28 recognises the right to an adequate standard of living and social protection for persons with disabilities.
Potential issue: The adequacy of relevant government social-protection measures and disability-related supports may warrant examination if evidence shows that applicable obligations were not met.
Qualification: Article 28 does not automatically make an individual NDIS provider responsible for your bank account, all living expenses or all financial difficulties. The responsibilities of the bank, government agencies and provider must be assessed separately.

21. CRPD Articles 5 and 8 — Equality, non-discrimination and awareness

Concern: You describe alleged homophobic abuse, humiliating treatment and concerns about whether your requests for assistance were treated appropriately.
Obligation: Article 5 addresses equality and non-discrimination; Article 8 addresses awareness and measures to combat stereotypes, prejudice and harmful practices concerning persons with disabilities.
Potential issue: Evidence of disability-based discrimination, stereotyping or degrading treatment within a regulated support service may be relevant to domestic discrimination law, the NDIS Code and Australia's CRPD obligations.
Qualification: The relevant protected attribute, the conduct, the setting and the connection to disability must be established. A disagreement or inadequate service response does not, without more, establish discrimination.
The full Convention is available from the United Nations human-rights treaty materials.

22. International Covenant on Civil and Political Rights (ICCPR), Article 6 — Right to life

Concern: Your report describes fear for your life, reported death threats and attempts to obtain protection.
Relevant obligation: Article 6 protects the inherent right to life. Australia's obligations include taking appropriate measures to protect life in circumstances covered by international law.
Potential issue: If evidence establishes that public authorities knew of a real and sufficiently serious threat and failed to take protective measures required by their obligations, the response may warrant examination.
Legal source: ICCPR — United Nations human-rights treaty text.

23. ICCPR Article 7 — Freedom from torture and cruel, inhuman or degrading treatment

Concern: You describe severe distress, threats, humiliation and experiences that you characterise as torture.
Relevant obligation: Article 7 prohibits torture and cruel, inhuman or degrading treatment or punishment.
Potential issue: Any objectively substantiated conduct by State agents, or a failure to meet applicable protective obligations, would require careful assessment against the relevant legal threshold.
Qualification: Your description of an experience as torture does not itself establish torture under international law. Your distress should nevertheless be addressed without requiring

you to prove every explanation you have offered for it.

24. ICCPR Article 9 — Liberty and security of person

Concern: You say you feel trapped and cannot leave independently.

Relevant obligation: Article 9 protects liberty and security of person against unlawful or arbitrary arrest and detention.

Potential issue: Evidence of unlawful detention, coercive confinement or another qualifying interference with liberty may engage Article 9.

Qualification: Dependence on disability supports, inability to afford transport or difficulty leaving accommodation does not automatically constitute detention under Article 9. The actual restrictions, their cause and their legal basis must be established.

25. ICCPR Article 17 — Privacy and protection against unlawful interference

Concern: Your report describes experiences you interpret as electronic surveillance, interference with communications and harassment. It expressly acknowledges that you cannot independently establish the source of those experiences.

Relevant obligation: Article 17 protects against unlawful or arbitrary interference with privacy, family, home and correspondence.

Potential issue: Verifiable evidence of unlawful interference by State authorities, or other conduct covered by applicable law, may warrant investigation.

Qualification: The experiences reported do not, by themselves, prove surveillance or establish who was responsible. An assessment should distinguish independently verifiable communications interference from unconfirmed explanations.

26. ICCPR Article 26 — Equality before the law and non-discrimination

Concern: You describe alleged degrading treatment and concerns about unequal access to protection and services.

Relevant obligation: Article 26 guarantees equality before the law and equal and effective protection against discrimination.

Potential issue: Evidence that a public authority treated you differently on a prohibited discriminatory ground, or denied equal protection in circumstances covered by the Covenant, may warrant examination.

Qualification: An adverse decision, complaint-handling failure or service disagreement does not automatically establish discrimination. The treatment, comparator where relevant, protected ground and legal context must be examined.

27. International Covenant on Economic, Social and Cultural Rights (ICESCR), Article 11 — Adequate standard of living

Concern: You report difficulty obtaining food, accessing essential funds and securing practical assistance to meet basic needs.

Relevant obligation: Article 11 recognises the right to an adequate standard of living, including adequate food, clothing and housing.

Potential issue: Evidence of failures in applicable government social-protection measures or other State obligations may warrant examination.

Qualification: Article 11 does not automatically impose a direct legal duty on Able Point to pay

all your living expenses. The responsibilities of government agencies, the NDIS and the service provider must be distinguished.

28. ICESCR Article 12 — Right to the highest attainable standard of health

Concern: You report physical pain and difficulties obtaining assistance because of financial and transport barriers.

Relevant obligation: Article 12 recognises the right to the highest attainable standard of physical and mental health.

Potential issue: Evidence of discriminatory barriers to health services or failures by responsible public authorities to meet applicable obligations may warrant examination.

Qualification: The precise duty depends on the circumstances and applicable law. An NDIS provider is not automatically responsible for providing every health service a participant requires.

Legal source for items 27–28: ICESCR — United Nations human-rights treaty text.

Part III — Consolidated register of potential breaches

The following register can be used as an investigation checklist. It identifies the principal legal provisions to put to the provider and, where appropriate, the NDIS Quality and Safeguards Commission.

No.	Matter requiring investigation	Principal provision
1	Failure to respond to urgent support needs	NDIS Code, s 6(c), (e), (f)
2	Failure to support independence and choice	NDIS Practice Standards, Schedule 1, cl 6
3	Failure to respond to safeguarding concerns	NDIS Code, s 6(e)–(g); Practice Standards, cl 7
4	Unsafe or incompetent support delivery	NDIS Code, s 6(c)

5	Defective complaint handling	NDIS Act, ss 73W–73X
6	Failure to facilitate advocacy	Practice Standards, Schedule 1, cls 6–7
7	Inadequate continuity of supports	Practice Standards, Schedule 1, cl 16
8	Inadequate support planning	Practice Standards, Schedule 1, cls 18–21
9	Failure to address disability-related mobility barriers	DDA 1992, ss 5–6, 22–24, where applicable
10	Disrespectful or degrading conduct	NDIS Code, s 6(a), (c), (d)
11	Failure to maintain incident records or make required notifications	NDIS Act, ss 73Y–73Z; Incident Rules 2018

12	Disability discrimination or unequal treatment	DDA 1992; CRPD arts 5 and 8
13	Failure to meet applicable protective obligations concerning life	ICCPR art 6; CRPD art 10
14	Alleged torture or degrading treatment	ICCPR art 7; CRPD arts 16–17
15	Alleged unlawful restriction of liberty	ICCPR art 9
16	Alleged unlawful interference with privacy	ICCPR art 17
17	Failure to ensure equal legal protection	ICCPR art 26
18	Inadequate community inclusion or independence	CRPD art 19

19	Inadequate disability-related mobility measures	CRPD art 20
20	Barriers to health services	CRPD art 25; ICESCR art 12
21	Inadequate social protection or standard of living	CRPD art 28; ICESCR art 11

The official legislation links above are the primary references for verifying the precise wording and current application of each provision. The Practice Standards' clause numbers should be checked against the version applicable to the provider and service at the time of each alleged incident.

Part IV — What to request from Able Point and the NDIS Commission

To convert this assessment into a properly evidenced complaint, request the following:

1. A complete record of your requests for assistance, including dates, staff responses, referrals, escalation decisions and any recorded reasons for not providing assistance.
2. Your current support plan and service agreement, including the supports Able Point agreed to deliver, the responsible staff, continuity arrangements and any transport or community-access provisions.
3. All relevant incident and safeguarding records, including the provider's classification of each reported concern, any investigation, action taken and any required notification to the NDIS Commission.
4. The applicable complaints-management records, including acknowledgement, investigation, findings, reasons and available review pathways.
5. A written response to each allegation, identifying which facts are accepted, disputed or still under investigation, rather than responding only with a general statement.
6. An immediate practical support assessment, covering your stated inability to leave independently, safe transport, access to essential services, physical-health concerns and assistance to arrange veterinary care.
7. Confirmation of the provider's registration status and applicable standards, so that statutory obligations applying specifically to registered providers can be distinguished from the Code of Conduct obligations applying more broadly.
8. Independent advocacy and regulatory review, including assessment of whether the provider complied with the NDIS Code of Conduct, Practice Standards and any applicable

incident-reporting obligations.

You can contact the NDIS Quality and Safeguards Commission to lodge or follow up a complaint about the quality and safety of NDIS supports.

Part V — Overall legal assessment

On the material in your report, the most concrete issues for immediate investigation are:

- Whether the provider appropriately responded to your repeated requests for assistance and your stated inability to leave independently.
- Whether it assessed and acted on the safeguarding risks you reported.
- Whether agreed supports were delivered safely, competently and continuously.
- Whether complaints, incidents and requests for advocacy were handled in accordance with the applicable requirements.
- Whether disability-related barriers to independence, mobility and access to services were appropriately addressed.

The international instruments provide an additional human-rights framework, particularly the CRPD provisions concerning safeguarding, independent living, mobility, health and social protection. They should be used to assess the relevant State obligations and interpret applicable domestic law, rather than presented as automatic proof that Able Point has breached an international treaty.

The appropriate next step is an evidence-based, item-by-item regulatory complaint, preserving the original correspondence and asking the Commission to determine which provisions apply and whether the available records establish non-compliance.

One immediate matter should not wait for that determination: your report says you cannot leave independently and are having difficulty accessing essentials. If that remains the case today, please tell your support provider explicitly that you need practical assistance now. If you are in immediate danger or need urgent medical attention, call 000 in Australia.

I'll keep the report in your voice and preserve your central argument: the records themselves are evidence; the institutions that hold the records cannot be treated as the only authorities entitled to determine what those records mean. The report should document what you say happened, identify the records you have preserved, explain the connections you are drawing, and show how those records can be used to demand answers and accountability.

I will not rewrite your account to favour the agencies, dilute your rights, or insert apologies on behalf of the institutions you are challenging. I will also preserve your distinction between a record, your testimony, your interpretation and the conclusions you draw from them. That is not a retreat from your position; it makes the documentary argument clearer and harder to misrepresent.

THE WITNESS REMAINS

A comprehensive evidence-linked report in the voice of Dr Barran Dodger — Dr Richard William McLean

Documentary record · Institutional accountability · Disability rights · Administrative decisions · Safeguarding · Public-interest disclosures

PRESERVATION FIRST. EXAMINATION SECOND. CONCLUSION LAST.
THE RECORD STAYS FREE. FAITH IS NOT A FINDING.
Not a court. Not a verdict. A preserved record demanding examination.

1. Why this report exists

I am Dr Richard William McLean, known publicly as Dr Barran Dodger and Barran Resonance Dodger.

This report brings together the documentary record I have preserved, the decisions and correspondence that form part of that record, the circumstances I have documented, and the laws and rights relevant to understanding what happened to me.

My position is that the record must be examined as a whole. Individual documents do not exist in isolation. Decisions, dates, correspondence, official acknowledgements, service records, refusals, assessments and requests for assistance form a documentary sequence. Their significance lies not only in what each document says but also in how the documents relate to one another and to the events I have recorded.

The central problem is the inversion of accountability: I am expected to obtain help from systems whose decisions, records, procedures or conduct are themselves part of the circumstances I am asking to have examined. Where access to money, support, accommodation, information or an effective avenue of complaint is constrained, the burden of obtaining an answer can become part of the very problem requiring an answer.

I reject the proposition that my rights depend upon the willingness of an institution to acknowledge them. My rights do not begin when an agency agrees with me. My experience does not cease to exist because an institution has not resolved it. A preserved document does not become irrelevant because its implications are uncomfortable.

This report therefore brings the record into one accessible framework so that the documents, dates, decisions and applicable obligations can be examined together.

My purpose is preservation, examination and accountability.

2. The primary archive

The primary source for this report is my public documentary archive.

The Barran Dodger archive

My preserved records, publications, documentary indexes and legal materials.

Main archive: Barrandodger — GitHub Pages
Rebuild archive: Barrandodger Rebuild
Official Government Documents Register: Open the register
Legal brief dated 23 October 2026: Read the preserved PDF
Source repository: github.com/wezzo72/Barrandodger
Rebuild copy of the legal brief: Open the PDF

The archive is not merely a statement about my circumstances. It is a preserved body of material containing documents, indexed records, dated publications and correspondence that can be examined directly.

The existence of an accessible, dated document is itself a fact about the documentary record. Its contents establish what the document records. Its relationship to other

documents may establish a chronology, inconsistency, decision pathway or unanswered question. Where records are incomplete, the missing information and the circumstances in which it is missing become matters to investigate.

I want the archive read as a connected record rather than reduced to a few isolated extracts or a summary written by someone who has not examined the underlying material.

3. The evidentiary principle

I do not accept that the only meaningful evidence is a conclusion issued by the institution whose actions are in question.

The documentary record must be allowed to speak for itself.

The evidence in this archive can be examined through the following categories:

- Official record: a government, court, agency, provider or other institutional document.
- Documented event: an event recorded in a dated document, correspondence trail, incident report or decision.
- First-person testimony: my account of what I experienced, observed or was told.
- Administrative action: a decision, refusal, assessment, acknowledgement, restriction or other recorded exercise of authority.
- Corroborating sequence: separate records whose dates, subjects or contents connect to the same issue.
- Documented contradiction: records that appear inconsistent and require examination together.
- Unanswered question: an issue raised by the records for which the available documentary sequence does not yet supply an answer.
- Interpretation and conclusion: the meaning I draw from the cumulative record, including the systemic implications.

These categories preserve the substance of the evidence without giving an institution exclusive power to define it.

A receipt establishes that a receipt exists and what transaction it records. A decision establishes the decision recorded in it. An acknowledgement establishes that correspondence was acknowledged. An assessment establishes what was assessed and recorded. When several such records concern the same matter, the relationship among them deserves examination.

The relevant question is not whether every document proves every part of my account. It is whether the documents, considered together with the events they record and my testimony, provide a substantial basis for the questions I am raising and the answers I am seeking.

4. Disability, support and the right to safety

My circumstances must be examined in the context of disability rights, the provision of support, personal safety, access to essential resources and the responsibilities of the institutions involved.

My documentary record includes material concerning my NDIS plan, accommodation and support requests, safety assessments, service concerns and attempts to obtain assistance.

The key records include:

NDIS Plan Approval — 20 November 2025

Open the preserved plan approval PDF

This record is relevant to the formal plan and the support arrangements documented at the time. It provides a starting point for examining the approved supports against subsequent accommodation, safety and service needs.

Anglicare Safety Assessment / Duty of Care — 1 December 2025

Open the preserved assessment PDF

This is a central record for examining the safety issues identified, what was communicated, what action was contemplated and how subsequent circumstances were handled.

Accommodation Request — SIL/SDA — 20 January 2026

Open the preserved accommodation request

This document is relevant to the accommodation sought, the support requirements communicated and the response pathway that followed.

Housing Letter — SIL/Accommodation

Open the preserved housing letter

This record should be read alongside the accommodation request and the safety material to examine what housing or support was requested and how the circumstances were addressed.

These records matter because they provide documentary reference points for examining my circumstances and the institutional response.

My concern is not confined to whether an individual service completed an administrative task. The wider question is whether the actual support, accommodation and safeguarding arrangements addressed the needs and risks documented in the record.

Where a plan, safety assessment, accommodation request and later complaint relate to the same person and period, they should be examined together. The chronology should establish what was known, what was requested, what decisions were made, what action followed and what remained unresolved.

5. Formal notice and emergency safeguarding

My archive also contains records specifically directed to service failure, emergency safety and the need for intervention.

- Formal Notice — NDIS Service Failure, 20 January 2026
- Emergency Safety Escalation Script
- Anglicare Emergency Safety Assessment
- Commonwealth Ombudsman Service Restriction

The significance of these records lies in the issues they identify and the response they seek. A formal notice places a concern into a documented communication pathway. An emergency escalation document records the issues being brought forward and the action being sought. A safety assessment provides material for examining the risks considered. A record concerning a service restriction may help establish the context in which assistance was sought or accessed.

Read together, these records provide a framework for investigating the sequence of notification, response, escalation and unresolved need.

The questions are concrete:

- What circumstances were communicated?

- When were they communicated, and to whom?
- What responsibilities were engaged by the circumstances described?
- What response was recorded?
- What action was taken, and when?
- What remained unresolved after the communication?
- What further assistance or intervention was requested?

These questions are not answered by dismissing the person who raised them. They are answered by examining the records and the actions they document.

6. Financial access, material deprivation and dependence

My account describes circumstances in which access to money and essential resources is central to my ability to obtain food, medicine, communications and practical assistance. Financial access is not an abstract administrative matter when a person depends on available funds to meet immediate needs. It affects whether that person can make calls, travel, obtain necessities and seek help.

My documentary archive includes a record concerning the disposal of a vehicle by NSW Trustee and Guardian:

NSW Trustee Vehicle Disposal Decision — 14 November 2025

This record is relevant to examining the decision documented, the circumstances surrounding it and its relationship to my independence and access to resources.

The appropriate documentary examination includes:

- the decision and its stated basis;
- the correspondence and information considered;
- the effect of the decision on my practical circumstances;
- any requests for review, clarification or assistance;
- the responses recorded; and
- the relationship between financial administration and my capacity to meet essential needs.

My position is that administrative authority must be examined in light of its practical consequences. A decision cannot be understood fully by reading its title alone; it must be considered in the context of the person affected and the sequence of records surrounding it.

7. Public-interest disclosures and government records

My archive contains material relating to public-interest disclosures, government correspondence and decisions about the handling of information.

The principal records include:

- Federal Court / PID Assessment — 27 March 2023
- Notification of Decision Not to Allocate a Disclosure — 18 June 2023
- PID Ombudsman Acknowledgement Receipt — 20 January 2026
- PID / Whistleblower / OAIC / APRA Correspondence
- OAIC FOI / PID / Whistleblower Record

These records are relevant to understanding how disclosures and requests were handled over time.

A decision not to allocate a disclosure is an identifiable administrative action. An acknowledgement receipt is an identifiable communication event. Correspondence

concerning freedom of information, disclosure handling or whistleblower processes provides a documentary trail that can be compared with the requests made and the responses received.

My concern is the relationship between the original issues raised and the subsequent administrative pathway.

The examination should establish:

- what information was submitted;
- what disclosure or request was made;
- what decision was communicated;
- what reasons were recorded;
- which procedural pathway was used;
- what further correspondence followed; and
- whether the substantive issues raised received a response.

The distinction matters. A record of a procedural decision establishes what occurred procedurally. The underlying disclosure and subsequent correspondence must also be examined to understand the issue that prompted the process.

I seek examination of the entire sequence rather than a conclusion based on a single administrative label.

8. Police matters and legal documentation

My archive contains a document titled Police Matter Legal Documents:

Open the preserved police matter legal documents

My personal account also describes a reported death threat, an arrest and a matter involving Wyong Court.

These issues must be examined through the relevant records, including any police communications, court documents, event dates, incident references and recorded outcomes.

The documentary task is to connect the records to the events they concern and establish the sequence in which those events occurred.

This includes identifying:

- the incident or event described;
- the relevant dates and authorities;
- the records created or received;
- the decisions and outcomes recorded;
- any correspondence concerning the matter; and
- any questions left unanswered by the available documents.

Where different records refer to the same event, they should be compared. Where a record refers to an outcome, the underlying document should be examined so the precise outcome is preserved rather than paraphrased into something different.

My position is that the record must remain accessible and capable of independent examination.

9. The reported harm and safety concerns documented in my personal account

My first-person report, You're hurting me, dated 24 October 2026, records my account of my circumstances and the harms I describe.

The report includes my account of:

- difficulties leaving my circumstances independently;
- restricted access to money and essential resources;
- back pain following what I describe as being run over by a car;
- concern that my dog may have been poisoned;
- concerns about safeguarding and the adequacy of support;
- a reported death threat, arrest and court matter;
- experiences of alleged homophobic abuse and exploitation; and
- experiences I interpret as surveillance or voice-to-skull phenomena.

These are part of my documented account. The appropriate response is to preserve the account and examine the available records relating to each issue.

The relevant documentary material may include medical records, photographs, incident reports, veterinary records, witness communications, police records, provider communications and dated correspondence, where available in the archive.

Each source contributes to a different aspect of the record. A first-person account documents what I report experiencing. A medical or veterinary record may document an examination or finding. A police or provider record may document what was reported or what action was recorded. The relationship between those sources is the basis for a more complete examination.

I do not accept that my account should be discarded merely because an institution has not supplied the answer I seek. My testimony belongs in the record. The documents that relate to it belong in the record. The questions raised by their relationship belong in the record.

The report should be read in full, not reduced to a characterisation that excludes the substance of what I have written.

10. The legal and human-rights framework

The documentary record must be considered against the legal protections and standards relevant to disability, dignity, safety, service provision, discrimination and access to effective processes.

The following are primary legal sources.

National Disability Insurance Scheme

NDIS Code of Conduct Rules 2018

Read the legislation

The Code establishes conduct requirements for NDIS providers and workers, including respect for individual rights and self-determination, privacy, safe and competent service delivery, integrity and raising concerns about the quality and safety of supports.

NDIS Practice Standards and Quality Indicators

Read the standards

These standards provide a framework for examining the quality and safety of supports, participant rights, governance, service delivery and management of risk.

National Disability Insurance Scheme Act 2013

Read the Act

The Act provides the statutory framework for the NDIS, including participant plans, supports and the administration of the scheme.

NDIS Incident Management and Reportable Incidents Rules 2018

Read the rules

These rules are relevant when examining how incidents are managed, documented, escalated and, where the applicable criteria are met, reported.

Discrimination and human rights

Disability Discrimination Act 1992

Read the Act

This Act provides federal protections against disability discrimination in areas covered by the legislation. Its relevance depends on the circumstances and the provisions engaged.

Convention on the Rights of Persons with Disabilities (CRPD)

Read the United Nations treaty text

Relevant provisions include respect for dignity and autonomy, non-discrimination, accessibility, protection from exploitation, violence and abuse, and access to community life and appropriate support.

International Covenant on Civil and Political Rights (ICCPR)

Read the United Nations treaty text

Relevant rights include equality before the law and protections concerning liberty, security and effective remedies in circumstances covered by the Covenant.

International Covenant on Economic, Social and Cultural Rights (ICESCR)

Read the United Nations treaty text

Relevant provisions concern the rights to an adequate standard of living, health and other economic and social protections.

These legal sources supply the framework against which the circumstances and institutional actions should be examined. The specific legal consequences depend on the facts, the applicable provisions, the responsible entity and the available legal process.

The existence of a legal protection is not dependent on an agency voluntarily endorsing my interpretation of events. The relevant task is to identify the protection, the circumstances in which it applies and the actions or omissions that require examination.

11. The cumulative documentary argument

The strongest way to read this archive is as a chronology of related events and administrative actions.

The material identified in this report includes records from different dates and processes:

Period	Documentary material	Issue for examination
March 2023	Federal Court / PID Assessment	Public-interest disclosure and associated

		assessment
June 2023	Decision not to allocate a disclosure	Administrative handling of a disclosure
November 2025	NDIS Plan Approval	Approved plan and support arrangements
November 2025	NSW Trustee Vehicle Disposal Decision	Financial administration and its practical consequences
December 2025	Anglicare Safety Assessment / Duty of Care	Recorded safety issues and response
January 2026	Accommodation and housing requests	Housing, support and requested arrangements
January 2026	Formal service-failure notice	Concerns communicated and response pathway
January 2026	Emergency safety material	Escalation of safety concerns
January 2026	PID, Ombudsman and OAIC	Administrative handling and

	correspondence	unanswered questions
January 2026	Police Matter Legal Documents	Relevant police and legal records
October 2026	You're hurting me	First-person account of current circumstances and reported harms
October 2026	Legal brief and archive publications	Consolidation and preservation of the documentary record

The table identifies the records and issues associated with each period. It is a starting chronology, not a substitute for reading the full documents.

The central analytical task is to determine how these records relate to one another.

For example, accommodation requests should be examined alongside the plan and safety material. A service-failure notice should be examined alongside the communications and decisions that preceded it. A later account should be compared with the earlier records it discusses. Public-interest disclosure correspondence should be read with the original disclosure and the decision that followed.

This approach does not require every document to prove every conclusion. It requires the record to be examined as a whole.

12. The paradox of seeking assistance from the systems under examination

The central paradox in my account is that I need assistance, yet the pathways through which I seek that assistance are themselves part of the documentary history I am asking to have examined.

A person who needs support may also need to challenge the decisions, practices or administrative processes affecting that support. A person who seeks an answer may have to rely on records held by the very institutions being asked to explain their actions. A person

who lacks independent access to essential resources may face additional practical barriers to making complaints, obtaining documents and pursuing a response.

These circumstances cannot be understood solely by asking whether a complaint was submitted.

The record must also be examined for the practical ability to pursue that complaint, the information available to the person, the responses received, the steps required and the consequences of unresolved issues.

My argument is that accountability must be more than a procedure that exists on paper. It must be capable of addressing the actual problem raised.

Where the documentary record shows repeated requests, successive administrative processes or continuing unresolved needs, the sequence deserves examination in its own right.

The proper response is to examine the records, establish the chronology and address the substantive questions.

13. What the record requires to be examined

The following are the principal questions arising from the documentary framework set out above.

- Support and accommodation: What supports were approved, what accommodation was requested, and what arrangements were made in response to the documented needs?
- Safety: What safety concerns were communicated, what assessments were recorded, and what action followed?
- Service delivery: What concerns about service delivery were documented, how were they handled, and what remained unresolved?
- Financial independence: What decisions affected access to resources or independence, and what information and reasoning accompanied those decisions?
- Disclosure handling: What information was submitted, how was it processed, what decisions were made and what further correspondence followed?
- Police and legal matters: What do the underlying records establish about the events, procedures and outcomes described in my account?
- Continuity of records: How do earlier records relate to later requests, notices, assessments and accounts?
- Outstanding issues: Which questions have been answered by the documents, which remain unresolved, and which records are required to complete the chronology?

These are documentary questions. They can be pursued through the material already preserved and through requests for the records needed to complete the sequence.

14. Preservation and independent examination

The archive exists so that the documentary record remains accessible.

My preservation principle is straightforward: retain the source, retain the date, retain the link, retain the context and retain the distinction between the document and any interpretation of it.

The relevant sources should be opened in their original form wherever possible. Their dates, titles, contents and relationships to other records should be preserved. Where an index

refers to a PDF, the PDF should be examined directly. Where correspondence refers to an earlier communication, that earlier communication should be located. Where an assessment refers to an event or decision, the related record should be connected to it.

This process makes the record easier to inspect, not easier to dismiss.

The archive should not be reduced to a short description that removes the chronology, source links or details necessary to understand the matter. Nor should an institutional description replace the underlying document when the underlying document is available.

The documents are part of the record. My testimony is part of the record. The chronology is part of the record. The questions arising from that chronology are part of the record.

15. Conclusion: The witness remains

I have preserved this material because I want the events, decisions, correspondence and questions concerning my circumstances to remain accessible.

I do not accept that my rights depend on the approval of the institutions whose conduct or decisions I am asking to have examined. I do not accept that the absence of an institutional resolution erases the documents, the events recorded in them or my account of what I experienced.

The records identified here provide a documentary basis for examining disability support, accommodation, safeguarding, financial administration, public-interest disclosures, police and legal matters, and the relationship between those issues over time.

The next step is to read the underlying documents in sequence, preserve their contents and links, and identify the precise decisions, actions, omissions and unanswered questions they disclose.

I want the record examined in its entirety.

I want the source documents to remain accessible.

I want the questions raised by the record addressed directly.

And I want the distinction between what is documented, what I have experienced, what I conclude and what remains to be established to remain visible, so that the substance of my account cannot be erased through selective quotation, institutional shorthand or the omission of relevant material.

The witness remains. The record remains. The questions remain open until they are answered.

Source register

For direct access to the primary archive and its documentary indexes:

- Main Barran Dodger Archive
- Rebuild Archive
- Official Government Documents Register
- Legal Brief — 23 October 2026
- NDIS Plan Approval — 20 November 2025
- Anglicare Safety Assessment — 1 December 2025
- Accommodation Request — SIL/SDA — 20 January 2026
- Formal Notice — NDIS Service Failure
- Emergency Safety Escalation Script

- Commonwealth Ombudsman Service Restriction
- Federal Court / PID Assessment — 27 March 2023
- Decision Not to Allocate a Disclosure — 18 June 2023
- PID Ombudsman Acknowledgement Receipt
- OAIC FOI / PID / Whistleblower Record
- Police Matter Legal Documents

This is the revised report in the requested voice and framing, with the source links retained. It is provided here as text; I have not created a new downloadable PDF in this response.

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